

SOFTWARE SERVICES AGREEMENT

Effective Date: December 09, 2025

PARTIES

This Software Services Agreement (the "Agreement") is entered into between:

TechCorp Industries, Inc. ("Client")
123 Innovation Drive, San Francisco, CA 94105

AND

CloudSoft Solutions LLC ("Service Provider")
456 Tech Plaza, Austin, TX 78701

RECITALS

WHEREAS, Client desires to engage Service Provider to develop custom software solutions for enterprise resource planning and data analytics; and

WHEREAS, Service Provider possesses the necessary expertise, technology, and resources to provide such services in accordance with industry best practices.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, the parties agree as follows:

1. SCOPE OF SERVICES

Service Provider agrees to provide the following services ("Services"):

- a) Design and development of a cloud-based ERP system with modules for finance, inventory management, and customer relationship management.
- b) Implementation of machine learning algorithms for predictive analytics and business intelligence dashboards.
- c) Integration with existing Client systems including SAP, Salesforce, and proprietary databases.
- d) Ongoing maintenance, support, and security updates for a period of 24 months following initial deployment.

2. COMPENSATION AND PAYMENT TERMS

2.1 Fees: Client agrees to pay Service Provider a total compensation of \$850,000 USD ("Total Fee") for the Services, payable according to the milestone schedule outlined in Exhibit A.

2.2 Payment Schedule:

- 30% (\$255,000) upon execution of this Agreement
- 30% (\$255,000) upon completion of development phase
- 20% (\$170,000) upon successful User Acceptance Testing
- 20% (\$170,000) upon final deployment and go-live

2.3 Expenses: Client shall reimburse Service Provider for reasonable out-of-pocket expenses incurred in connection with the Services, including travel, lodging, and third-party software licenses, provided such expenses are pre-approved in writing and supported by appropriate documentation.

3. INTELLECTUAL PROPERTY RIGHTS

3.1 Ownership: Upon full payment of all fees under this Agreement, Client shall own all rights, title, and interest in and to the custom software developed specifically for Client ("Deliverables"), including all source code, documentation, and related materials.

3.2 Service Provider Tools: Service Provider retains all rights to its pre-existing tools, frameworks, libraries, and methodologies used in providing the Services. Client is granted a perpetual, non-exclusive, royalty-free license to use such tools solely in connection with the Deliverables.

3.3 Third-Party Components: Any third-party software, libraries, or components incorporated into the Deliverables shall be licensed to Client under the applicable open-source or commercial licenses. Service Provider warrants that all such components are properly licensed and do not infringe upon any third-party intellectual property rights.

4. CONFIDENTIALITY

4.1 Definition: "Confidential Information" means any non-public information disclosed by either party that is marked as confidential or would reasonably be considered confidential given the nature of the information and circumstances of disclosure.

4.2 Obligations: Each party agrees to:

- Maintain the confidentiality of the other party's Confidential Information
- Use Confidential Information only for purposes of this Agreement
- Not disclose Confidential Information to third parties without prior written consent
- Protect Confidential Information using the same degree of care used for its own information

4.3 Exclusions: Confidential Information does not include information that:

- Is or becomes publicly available through no breach of this Agreement
- Is rightfully received from a third party without confidentiality restrictions
- Is independently developed without use of Confidential Information
- Is required to be disclosed by law or court order

5. WARRANTIES AND REPRESENTATIONS

5.1 Service Provider Warranties: Service Provider represents and warrants that:

- It has the right and authority to enter into this Agreement
- The Services will be performed in a professional and workmanlike manner
- The Deliverables will substantially conform to specifications agreed upon
- The Deliverables will not infringe upon any third-party intellectual property rights

5.2 Client Warranties: Client represents and warrants that:

- It has the authority to enter into this Agreement
- All Client-provided materials and information are accurate and lawful
- It has obtained all necessary permissions for Service Provider to access Client systems

6. TERM AND TERMINATION

6.1 Term: This Agreement shall commence on the Effective Date and continue until all Services are completed and accepted by Client, or until terminated in accordance with this Section.

6.2 Termination for Convenience: Either party may terminate this Agreement for convenience upon thirty (30) days' written notice. In such event, Client shall pay Service Provider for all Services performed and expenses incurred up to the termination date.

6.3 Termination for Cause: Either party may terminate this Agreement immediately upon written notice if the other party:

- Materially breaches this Agreement and fails to cure within fifteen (15) days
- Becomes insolvent or files for bankruptcy
- Ceases business operations

6.4 Effect of Termination: Upon termination, Service Provider shall deliver all work-in-progress and Client property to Client. Sections 3 (Intellectual Property), 4 (Confidentiality), 7 (Limitation of Liability), and 8 (General Provisions) shall survive termination.

7. LIMITATION OF LIABILITY

7.1 Cap on Liability: Except for breaches of confidentiality or intellectual property infringement, neither party's total cumulative liability under this Agreement shall exceed the Total Fee paid or payable under Section 2.

7.2 Exclusion of Consequential Damages: In no event shall either party be liable for any indirect, incidental, special, consequential, or punitive damages, including lost profits, lost data, or business interruption, even if advised of the possibility of such damages.

8. GENERAL PROVISIONS

8.1 Governing Law: This Agreement shall be governed by the laws of the State of California, without regard to its conflict of laws principles.

8.2 Dispute Resolution: Any disputes arising under this Agreement shall first be attempted to be resolved through good-faith negotiations. If unresolved within thirty (30) days, disputes shall be submitted to binding arbitration in San Francisco, California under the rules of the American Arbitration Association.

8.3 Entire Agreement: This Agreement, including all exhibits and attachments, constitutes the entire agreement between the parties and supersedes all prior negotiations, understandings, and agreements.

8.4 Amendments: This Agreement may only be amended by written instrument signed by both parties.

8.5 Assignment: Neither party may assign this Agreement without the prior written consent of the other party, except that either party may assign to a successor in connection with a merger, acquisition, or sale of substantially all assets.

8.6 Notices: All notices under this Agreement shall be in writing and delivered by certified mail, overnight courier, or email to the addresses specified in the preamble.

8.7 Severability: If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

SIGNATURES

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

TechCorp Industries, Inc.

By: _____
Name: Jennifer Martinez
Title: Chief Technology Officer
Date: _____

CloudSoft Solutions LLC

By: _____
Name: Robert Chen
Title: CEO & Founder
Date: _____